

Law before this making of the Statute, which could not be, except there were (before this Statute) some Courts authorised to examine, and correct such Errors as by the Plaintiff should be assigned. The Inconvenience which by this Statute was to be remedied was this, that often Judgment given in the King's Courts, by which are meant in this Place the King's Bench and Court of Common Pleas, the Party against whom the Judgment was given, did begin a new Suit, and cause his Adversary to come before the King himself; here by the King himself must be understood the King in Person; for though in a Writ by the Words *Coram nobis* is understood the King's Bench, yet in a Statute it is never so. Nor is it strange, seeing in those Days the King did usually sit in Court with his Council, to hear Causes, as sometimes King James. And sometimes the same Parties commenced their Suit before the Privy Council, though the King were absent; and sometimes before the Parliament, the former Judgment yet standing. For Remedy whereof, it was ordained by this Statute, that no Man should renew his Suit, till the former Judgment was undone by Attaint or Error; which reversing of a Judgment had been impossible, if there had been no Court (besides the aforesaid two Courts) wherein the Errors might be assigned, examined, and judged; for no Court can be esteemed in Law, or Reason, a competent Judge of its own Errors. There was therefore before this Statute some other Court existent for the hearing of Errors, and reversing of erroneous Judgments. What Court this was I enquire not yet, but I am sure it could not be either the Parliament or the Privy Council, or the Court wherein the erroneous Judgment was given.

*La.* The Doctor and Student discourse of this Statute, *cap.* 18. much otherwise than you do: For the Author of that Book saith, that against an erroneous Judgment all Remedy is by this Statute taken away. And though neither Reason, nor the Office of a King, nor any Law positive can prohibit the remedying of any Injury, much less of an unjust Sentence, yet he shews many Statutes, wherein a Man's Conscience ought to prevail above the Law.

*Pb.* Upon what ground can he pretend, that all Remedy in this Case is by this Statute prohibited?

*La.* He says it is thereby enacted, that Judgment given by the King's Courts shall not be examined in the Chancery, Parliament, nor elsewhere.

*Pb.* Is there any Mention of Chancery in this Act? It cannot be examined before the King and his Council, nor before the Parliament, but you see that before the Statute it was examined somewhere, and that this Statute will have it examined there again.

And seeing the Chancery was altogether the highest Office of Judicature in the Kingdom for Matter of Equity, and that the Chancery is not here forbidden to examine the Judgments of all other Courts, at least it is not taken from it by this Statute. But what Cases are there in this Chapter of the Doctor and Student, by which it can be made probable, that when Law and Conscience, or Law and Equity, seem to oppugn one another, the written Law should be preferred?

*La.* If the Defendant wage his Law in an Action of Debt brought upon a true Debt, the Plaintiff hath no Means to come to his Debt by way of Compulsion, neither by *Subpœna*, nor otherwise, and yet the Defendant is bound in Conscience to pay him.

*Pb.* Here is no preferring that I see, of the Law above Conscience, or Equity; for the Plaintiff in this Case loseth not his Debt for want either of Law, or Equity, but for want of Proof; for neither Law nor Equity can give a Man his Right, unless he prove it.

*La.* Also if the Grand Jury in Attaint affirm a false Verdict given by the Petty Jury, there is no farther Remedy, but the Conscience of the Party.

*Pb.* Here again the want of Proof is the want of Remedy; for if he can prove that the Verdict given was false, the King can give him Remedy such way as himself shall think best; and ought to do it, in case the Party shall find Surety, if the same